

EASE OF DOING BUSINESS IN FOCUS: NO ARREST, MINIMUM SENTENCING TO Rs 10,000-FLOOR FOR NOTICES

GST process reforms pin hope on data, tech to ensure compliance

Siddharth Upasani & Aanchal Magazine
New Delhi, October 5

THE GST Council's meeting on Thursday will take up the second half of the reform exercise that was kicked off with the Goods and Services Tax (GST) rate cuts announced in September 2025. Officials said the process reforms on the agenda will cement the indirect tax regime for the next half a decade or so and "systems built on technology and good quality data" can help ensure correct behaviour from businesses without "onerous compliance".

"GST rates were cleaned up last year. Now, the focus is on moving towards a stable tax system with predictability, as was the demand from the industry. It may take a year or two to stabilise and then the GST regime will only require minor tweaks for the next 5-6 years," an official said. "If the proposals are approved by the Council, then the framework will be set," the official added.

A key proposal in the process reforms that will be discussed in the Council meeting on October

8 is going to be the removal of the power to arrest by GST officers, as reported by *The Indian Express* on Sunday. This power, officials said, has led to the creation of unnecessary leverage over businesses even before the actual arrest stage is reached.

"Tax disputes will be resolved through civil consequences, namely recovery of the tax, interest for the delay, and penalty," the official said. However, prosecution will remain available, with the GST Council expected to discuss some tweaks. Additionally, the threshold for prosecution is likely to be increased from Rs 1 crore to Rs 5 crore.

The sentencing provisions are also proposed to be softened, with the minimum sentence likely to be removed altogether. This, officials said, means courts won't be bound to impose a term of imprisonment regardless of circumstances. Also, a fine will be available as an option in every case. Furthermore, it is proposed that no notice will be issued at all where the amount involved is below Rs 10,000. Crucially, this change is expected to apply to new cases as well as those pending, whether in adjudication or



The GST Council last met in September 2025. REUTERS

in the appeal phase.

"Such cases are about a fifth of all cases by number and a negligible part of the money. For a small business, a notice of this size costs more to answer in fees and time than the amount in dispute. Removing that category will be a real relief, and will free up officers for matters of substance," the official said.

The GST Council will deliberate on a wide variety of issues on October 8 that encompass all the tax dealings of an entity during its lifecycle – getting regis-

GST Council to now meet on Thursday

New Delhi: The 57th meeting of the GST Council has been re-scheduled to Thursday from Wednesday, an office memorandum said, citing "unavoidable circumstances". This will be the Council's first meeting after it announced an overhaul of Goods and Services Tax rates in early September 2025. This week's meeting is expected to focus on process reforms. ENS

tered, filing returns and correcting them, claiming refunds, and answering demands.

"All four processes are proposed to be redesigned on a single principle, namely that the system should do what can be done from data and the officer should be left with what needs judgement," an official said.

One major process change is set to be for the export of services, which will help align GST laws with the practice on ground. Citing the example of a testing laboratory which receives a proto-

type from a foreign client, tests it, sends back the report, and is paid in foreign exchange, the official explained that the place of supply followed where the work was performed. "It will now follow the location of the customer, and such work therefore qualifies as an export. This opens the whole field of testing, certification, repair, calibration, research and analysis to export treatment, and India has substantial capacity in all of them."

Wednesday's meeting comes over 13 months after the last one in September 2025 which announced the major rate overhaul that saw the number of tax slabs being reduced to 5% and 18%, with a 40% rate for demerit goods. "There have been no meetings of the GST Council in the interim, but discussions have been ongoing to bring all stakeholders on the same page, and that takes time. What has helped is that there have not been any major concerns about revenues being adversely impacted by the rate rationalisation exercise of September 2025. This has made it easier to go ahead with the process reforms discussions at this week's GST Council meeting."

Only 9% use public transport to go to work

Siddharth Upasani
New Delhi, October 5

THE STATISTICS ministry's first-ever household travel survey has found that only 9% of Indians use public transport to go to work, with 43% using two-wheelers. A mere 3% use cars. The survey's results also seemingly back the decision by several states to offer free bus travel to women, with more than a fifth of urban women using this mode of transport to go to work, three times as high as urban men.

Further, people in urban areas spend as much as Rs 1,044 per month to commute to work, 71% more than the Rs 612 spent by people in rural areas. Nationally, the average monthly ex-

penditure to go to work is Rs 785.

As per the survey, buses are used by 6.7% of people who reported travelling more than 1 kilometre to reach their place of work. Another 2.1% said they used monorail or tram, while 0.2% said they travel by rail.

"While monorail, metro, sub-urban rail, and trams account for 5% of urban worker commutes nationally, usage surges in Maharashtra (20.7%), West Bengal (16.5%), and Delhi (14.4%)," the Ministry of Statistics and Programme Implementation (MoSPI) said on Monday. Train, monorail, and tram include metro rail and local trains.

The findings of the National Household Travel Survey (NHTS), conducted from July 2025 to June 2026, are based on



Over a fifth of urban women take buses to work. REUTERS

responses from 20 lakh people across 14,274 villages and 10,377 urban blocks. MoSPI said the survey's main objective is to generate data-driven insights that can be used in regional transport planning and infrastructure de-

velopments as well as identify gaps, optimise transport routes, and improve service frequency and scheduling.

The survey's results back the decision made by several states to offer free bus travel for women, with 21.7% of urban women who travel more than 1 km for work taking a bus. For urban males, this figure is just 6.9%.

In certain states, the fraction of urban women commuting to work by bus was significantly higher than the national average: 46.8% in Kerala, 41.1% in Tamil Nadu, 34.9% in Karnataka, and 28.9% in Telangana. The 'bus' category includes public, private, company, and inter-city buses.

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NOTICES DIRECTED AT THE CEC, ECs SANDHU AND JOSHI

Did not clear Form 6 change... can annul unilateral decisions: SC sends notice to EC

Declines to pass interim order to suspend CEC
Gyanesh Kumar

Ananthakrishnan G
New Delhi, October 5

THE SUPREME Court on Monday issued notice to the Centre and the Election Commission of India (ECI) on a petition accusing Chief Election Commissioner Gyanesh Kumar of acting in violation of the law that governs his terms of office by functioning in a unilateral manner and seeking his removal.

The notice issued by a three-judge bench, presided by Chief Justice of India Surya Kant, was also directed at the CEC, Election Commissioners Sukhbir Singh Sandhu and Vivek Joshi, Deputy Election Commissioner Maneesh Garg and ECI Director General (Information Technology) Seema Khanna.

The petition, filed by Patna resident Rakesh Kumar Singh, is

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THE KNOCK ON THE SUPREME COURT'S DOOR

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The Indian Express investigation published on September 23

Will like to see who has modified what in records: Top court

Ananthakrishnan G
New Delhi, October 5

THE SUPREME Court said on Monday that it had not approved any “modified” version of Form 6, which is used to enroll new voters, and will examine Election Commission of India (ECI) records to know whether any change had been made and, if so, by who.

The apex court was responding to a petition, which argued that a “modified” Form 6 was used for the Special Intensive Revision (SIR) of electoral rolls. The matter is being heard by a three-judge bench

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E. EXPLAINED

Form in focus

This year, the ECI added a declaration to the online Form 6, for new voters, which requires applicants to answer if they or their parents/ grandparents were on the rolls of the previous SIR. Form 6 is prescribed under the Registration of Electors Rules, 1960, and only the Government can change it by amending the rules — a point two Election Commissioners flagged to the CEC.

• TOTAL CHEETAH POPULATION GOES UP TO 60, INCLUDING 41 BORN IN INDIA

Father from Botswana, mother from India: 5 cheetah cubs at Kuno usher in new lineage

Anand Mohan J
Bhopal, October 5

AN INDIAN-BORN cheetah has given birth to five cubs at Kuno National Park after mating with a Botswana Cheetah — ushering in the Botswana lineage of India's cheetah population.

KJP21, a 32-month-old female born in India, gave birth to the five cubs on Monday.

Their father is a male cheetah brought from Botswana, making the newborns the first representatives of the Botswana lineage to be born in India, Union Environment, Forest and Cli-

mate Change Minister Bhupender Yadav said.

The births take India's cheetah population to 60, of which 41 have been born in the country. KJP21 is the third female cheetah born in India to reproduce, after Mukhi and KGP12.

“With the arrival of these five cubs, the cheetah population in India has reached 60, including 41 Indian-born cheetahs. Importantly, these cubs also mark the

beginning of the Botswana lineage in India, as their father is a Botswana male cheetah — adding a new genetic lineage to India's growing cheetah popu-

lation,” Yadav said.

The development comes just months after India brought a fresh group of cheetahs from Botswana to strengthen the genetic base of Project Cheetah.

Nine cheetahs — six females and three males — arrived at Kuno from Botswana in February this year. They were the third group of cheetahs brought to India, after eight from Namibia in 2022 and 12 from South Africa in 2023.

The decision to bring cheetahs from Botswana followed a fresh round of government-to-government discussions that began in December 2024. The Union government formally



The cheetah cubs at Kuno National Park. @BYADAVBJP/X

approached Botswana as it looked to expand the genetic base of Project Cheetah beyond the animals already brought from Namibia and South Africa.

Yadav took up the proposal with Botswana's then Environment and Tourism Minister Boipuso Wynter Mmolotsi. Botswana agreed to partner

with India after considering the country's detailed Action Plan for Cheetah Reintroduction.

The partnership received a political push during President Droupadi Murmu's state visit to Botswana in November 2025. During her visit, Murmu and Botswana President Duma Gideon Boko witnessed the symbolic release of eight cheetahs, captured from the Ghanzi region, into a quarantine facility at the Mokolodi Nature Reserve.

The choice of Botswana was significant because the country has one of Africa's largest remaining wild cheetah populations. The first batch from Botswana was transported from the

Mokolodi Nature Reserve to Gaborone and then flown to India with the assistance of the Indian Air Force, before being taken by helicopter to Kuno.

After the November handover, the animals underwent quarantine, and the two sides worked through the necessary permissions, including export and CITES clearances, veterinary requirements and arrangements for transporting the animals to India.

A three-member Botswana delegation, including veterinarians and an anti-poaching expert, subsequently visited both Kuno National Park and Gandhi Sagar Wildlife Sanctuary

and held discussions with National Tiger Conservation Authority officials in Delhi.

Last month, as Project Cheetah completed four years, an Indian-born cheetah gave birth to four cubs at Kuno National Park, marking a milestone for a programme that began with the translocation of animals from Africa and is now seeing successive generations born in India. The birth was particularly significant because KGP12, the mother, is itself a product of the reintroduction programme. It was born in India to Gamini, one of the cheetahs brought from South Africa.

SC sends notice to EC

based on the findings of an investigation by *The Indian Express* published on September 23 that Sandhu and Joshi had objected on record 14 times in 10 months to steps taken by the Commission under the CEC — from keeping them in the dark to adding new voters and deleting names.

The plea urged the bench, also comprising Justices Joy-malya Bagchi and V Mohana, to seek the “complete original and primary records” relating to the matter from the Election Commission. It also prayed that the ongoing exercise be declared illegal.

The CJI assured that the court would examine the records and ensure that any decision taken without unanimity will have to go. “We can always annul any decision,” the CJI said.

Justice Bagchi said that after examining the records, if the court finds that some decisions were taken neither by unanimity nor by majority, “we will in-

junct those decisions...we will say these decisions are ultra vires...”.

The bench, however, declined to pass any interim order to suspend CEC Kumar or direct that the poll body should take decisions unanimously till it finally decided the matter.

Appearing for the petitioner, Senior Advocate Vikas Singh said some interim directions are necessary. “I am wanting an interim order today to suspend the CEC immediately...Today there are elections happening...or divest him of the authority to act as CEC”, he said.

Justice Bagchi, however, asked “who will conduct the election” in such a scenario. Singh responded that the two Election Commissioners can, and added that in the interim, the court should also restore the position of the ECI as it had made the CJI a member of the selection committee for CEC.

“We are dealing with a very grave situation today. A grave situation which can undermine

the very basis of our democracy. Today, our democracy is vibrant and known all over the world because of the way we are able to conduct the elections. This election.. has been conducted for 76 years, with the ECI having a certain amount of respect,” Singh said.

He said that while there have been earlier occasions where one or two decisions of the ECI may be questioned, “today we are having a situation where the very CEC as a constitutional body is acting in a manner which is completely contrary to the statute under which he is appointed.”

Pressing for interim relief, Singh said: “...today Your Lordships will pass some orders. Otherwise this country will burn today... The elections were conducted with the ECI having some respect. But today we are having a situation where the CEC is acting in a manner which is completely contrary to the statutory framework. Your Lordships have to take some interim measures here. Because otherwise the very credibility of the electoral process is so undermined that every citizen

of this country is feeling unsafe.”

When the court expressed its disinclination to issue any order to suspend the CEC, Singh sought a direction that the ECI will decide things unanimously till the court hears the matter next.

Referring to *The Indian Express* investigation, Singh pointed out that the ECI had not denied the report. “There is a press release (on September 26) by the Election Commission, which has not denied the newspaper report. The press release is in the vaguest of language.”

The CJI said: “(The) newspaper report may be 100 percent correct, it may be partially correct, it may be partially incorrect. We cannot really pass an order today on that basis. But we would definitely like to have their response. And then whatever correctional requirements are needed, will issue them.”

When Singh insisted that the court pass an interim order directing that the ECI act unanimously till the next date of hearing, the CJI said: “...going by the law, they are expected to take

firstly a decision by unanimity and if there is no unanimity, by majority. Now if there is a decision which is neither unanimous nor by majority, (then) that is subject matter (of challenge)...”.

The CJI said, “There is a mandatory law. We will accept that they follow it. And if ultimately we find there are instances it has not been followed, you know the (consequences).”

Accusing the CEC of violating the Chief Election Commissioner and Other Election Commissioners (Appointment, Conditions of Service and Term of Office) Act, 2023, the petition said: “If the power constitutionally vested in the Election Commission as a multi-member body can, in fact or in substance, be exercised by one office within it without the participation the Constitution and the 2023 Act... then decisions that determine who is on the electoral roll, and therefore who may vote, raise a serious constitutional question as to whether such decisions are being taken by the constitutional authority the Constitution created for that purpose.”

India, Switzerland to strengthen ties in defence, nuclear energy sectors

Shubhajit Roy*New Delhi, October 5*

INDIA AND SWITZERLAND signed pacts on mobility that will ease granting longer-duration visas and the exchange of young professionals and agreed to strengthen cooperation in defence and nuclear energy sectors, as Prime Minister Narendra Modi met Swiss President Guy Parmelin on Monday.

After the bilateral meeting with the visiting Swiss President, PM Modi said, "Today, we identified new possibilities for cooperation in military exchanges and defence production. We also reached a consensus on further deepening our collaboration in the field of nuclear energy."

On people-to-people ties, he said that the Migration and Mobility Partnership Agreement and the Young Professionals Agreement signed today will open up numerous new opportunities in Switzerland for Indian students, researchers, professionals, and the youth.

According to Ministry of External Affairs, the MoU aims to develop migration and mobility cooperation under equal treatment principles, and to prevent and combat irregular migration/human exploitation/trafficking in accordance with national laws. "It provides for multiple-entry visas for up to 5 years, including stays of up to 6 months on each visit, and renewable 1-year student per-



Switzerland President Guy Parmelin with Prime Minister Narendra Modi at the Hyderabad House in New Delhi on Monday. PRAVEEN KHANNA

mits," it said. On the agreement for exchange of young professionals, MEA said that the pact incorporates an exchange of 300 persons annually per country, which may increase to 500, and a timeline of 30 to 90 days for verification of nationality/residency status, among other provisions.

Lauding Swiss President Parmelin, Modi said, "I appreciate his commitment to India-Switzerland relations. Last October, with his personal support, we operationalised a historic Trade and Economic Partnership Agreement between India and the European Free Trade Association (EFTA) countries. This is India's first FTA with any economic bloc in Europe."

"It is also an ambitious blueprint for investment, innova-

tion, jobs, and shared prosperity. Through this, we aim to realise the goals of attracting \$100 billion in investment and creating one million direct jobs in India over the next 15 years."

Swiss President Parmelin said, "Trade was a key aspect, as my visit marks the first anniversary of the entry into force of the Trade and Economic Partnership Agreement between India and the European Free Trade Association. This partnership benefits both sides: India gains access to capital, technology transfers, and easier access to markets for high-value-added goods. Switzerland, for its part, benefits from trade with a massive partner experiencing sustained growth—at a time when global trade has become more vulnerable and unpredictable."

He said, "I am accompanied by a large delegation of high-ranking business leaders, underscoring our commitment to capitalising on the opportunities offered by this trade and economic partnership agreement."

"To further boost investment, Switzerland hopes to conclude an investment protection agreement soon. In this context, achieving results in discussions on intellectual property protection is equally important," the Swiss President said.

In October last year, the Trade and Economic Partnership Agreement (TEPA) between India and the European Free Trade Association (EFTA) States of Iceland, Liechtenstein, Norway and Switzerland, came into force. Modi said, "We have taken several important deci-

sions to expand market access for Indian exports to Switzerland and further facilitate investment between the two countries."

"This will increase India's exports of agriculture, pharmaceuticals, textiles, and engineering goods to Switzerland. At the same time, we will attract new Swiss investment in key sectors like biotech, life sciences, banking, insurance, food processing, and sustainability," he said.

Through these initiatives, we will jointly develop trusted supply chains and reliable solutions for the entire world, he added. Modi said, "The ropeway in Varanasi, the Jewar Airport in Noida, and railways and tunnelling projects in hilly areas are shining examples of our infrastructure cooperation."

An agreement was also inked for collaboration on transport and infrastructure. "We invite Swiss infrastructure companies to invest in India on a large scale, and to participate in capacity building, design, and manufacturing," Modi said.

The PM said new joint research projects in priority areas such as health, clean energy, and space will be launched soon.

He said India-EFTA Prosperity Summit on Wednesday will be an important platform to translate the promise of our trade and investment partnership into concrete outcomes, he said. PM Modi also extended his best wishes to Switzerland for hosting the next edition of the AI Summit next year.



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BECAUSE THE TRUTH INVOLVES US ALL

The knock on the Supreme Court’s door

THIS NEWSPAPER’S investigation that shone a light on the functioning of the Election Commission of India in the context of the Special Intensive Revision of electoral rolls has raised serious questions. They have to do with a multi-member body, a constitutional authority, shrinking, many a time, into a one-man show, undermining the checks and balances within. More fundamentally, these questions touch the citizen’s sacrosanct right to shape her own and the nation’s future through the right to vote. On Sunday, Justice Ujjal Bhuyan framed the issues in all their breadth and gravity. Large-scale disenfranchisement caused by the SIR, he said, is a violation of the Constitution, and detaching the citizen from the right to vote is like “taking out the soul from the body”. He referred to debates in the Constituent Assembly to underline the transformational vision and the constitutional guarantee. “... years of freedom struggle and the revolt against foreign rule made the adoption of universal adult franchise a natural choice and an essential ingredient of democracy...” Equal vote with equal value, regardless of identity and social location, was the first step in a new nation to achieve equality. As the Supreme Court takes up cases related to the modalities of the SIR, and the EC’s appointment process and functioning, it would do well to listen in to Justice Bhuyan’s outlining of what is at stake. Former SC judge Rohinton Fali Nariman underlined it: Also on Sunday, he said that the SIR’s removal of voters put the right to vote, which is at the “heart of our democracy”, in “great peril”.

These are not just the concerns of two individual judges, they reflect the disquiet the Supreme Court needs to address to repair the damage done by its troubling silence. The citizen’s fundamental right to participate in the electoral process has to be protected at all costs. But even as the EC went back on its own record of inclusiveness, even as it shifted the burden of proof onto the vulnerable voter and set up a hurdle race at every stage of the SIR, the Court kept giving it the benefit of every doubt. Going ahead, therefore, not just the EC, the Court is also on test.

It is welcome, then, that the SC has made it clear that it did not approve of the changes made to Form 6, which made the process of registration of new voters more daunting. It is reassuring, too, that it wants answers from the EC on aspects of the decision-making within. With due respect, the Court must keep asking questions, again and again. It has a formidable record of affirming the sanctity of Article 324 that secures the Election Commission, it should ensure that remains without stain. For, as one its own members said, this is about the soul of the nation.

From calling for peace, Delhi is now working for it

BY ALL accounts, India has stepped into a more proactive role vis-à-vis the Russia-Ukraine war. Since the conflict began in February 2022, New Delhi has consistently urged restraint, with PM Narendra Modi saying to Russian President Vladimir Putin in September that year that “this is not an era of war”. Now, Ukraine’s Foreign Minister Andrii Sybiha has said that, among the proposals Kyiv has received, India’s is the “most comprehensive”; President Putin has said PM Modi “constantly raises the question about putting an end to the conflict” and has “very good ideas”; and External Affairs Minister S Jaishankar has acknowledged that India has gone “beyond advocacy” and is talking to both sides. The shift from calling for peace to working for it is welcome. Delhi must build on it.

On this front, India’s interests align with those of the world. Strikes on ports and vessels by both Russia and Ukraine, two major grain exporters, have left farmers in both countries vulnerable and increased the risk of a global food shock. Minister Jaishankar referred to this a few days ago when he warned of a “major food crisis” in the coming months, in addition to the already significant fertiliser shortages caused by conflicts in Eastern Europe and West Asia. The Ukraine war has also disrupted European energy markets, while India’s purchases of Russian oil have strained ties with the US. An end to the war, or even a de-escalation, would ease such pressures.

Going forward, Delhi would do well to focus on specific issues such as grain and energy, rather than sweeping questions involving territory or security guarantees. Both sides have immediate and shared interests in these areas, which means something can be agreed upon without first resolving the harder questions. Even if it does not exert as much leverage over Ukraine or Russia as the US and China, respectively, India can demonstrate that it is actively working towards getting the warring parties to talk. A record of even-handed diplomacy would also answer critics who see India as too close to Russia, a relationship that has drawn scrutiny, not least over oil purchases, for nearly five years.



PARAMESWARAN IYER, NITIN BASSI AND DANIEL W SMITH

NEW DELHI recently hosted the ninth edition of the India International Water Week under the theme of climate-resilient water management. The talk focused as much on what India has achieved in the last decade as on what comes next — keeping water supply sustainable, using water more efficiently, and treating used water as both an environmental and economic resource.

India’s influence in the global water sector has grown substantially. From a country exposed to frequent climate shocks and access challenges to one now preparing for climate extremes such as floods and droughts, it offers lessons for other countries in the Global South. Over the past decade or so, India has designed and implemented some of the world’s largest programmes to improve water governance, rejuvenate rivers, increase access to water and sanitation, and enable community-driven water conservation, protection, and augmentation. And if we pause and take a step back in time, it is important to acknowledge the leadership of then Gujarat Chief Minister Narendra Modi’s initiatives between 2001 and 2014, a period that served as a laboratory for the water governance reforms that rolled out across India after 2014. These included the design and implementation of the Swachh Bharat

Mission, Jal Jeevan Mission (JJM), Jal Shakti Abhiyan, Namami Gange, Atal Bhujal Yojana (ABY), Per Drop More Crop (PDMC), etc. This 25-year journey is documented in our new case study, ‘From Gujarat to India: Water Lessons for the World’, which traces water governance reforms in Gujarat and India from 2001 to 2026. Drawing on official data, policy and programme records, the literature and consultations with practitioners, the study examines how political leadership and prioritisation, public financing, institutional reform, administrative implementation and community engagement came together to strengthen water security at scale. Its central finding is that water security is as much a challenge of governance and institutions as it is of engineering — and that the Gujarat experience offers a useful lens for understanding the subsequent national journey and its relevance to the Global South.

The case study distils four key lessons which, if studied and contextualised appropriately, can prove effective in the coming years and inform water governance in other countries in the Global South: Lead with governance, manage the resource and the service together, root action in communities, and build for scale from the start.

Lead with governance, not only hardware: Political will and institutional strengthening, rather than infrastructure alone, are core to water security. India has developed a framework for putting them into action at scale, called the “4 Ps”, which were articulated by PM Modi and UN Secretary-General António Guterres through the Delhi Declaration in October 2018. The first is political leadership that prioritises water, reflected in initiatives such as universal tap water access, a cleaner Ganga, community-driven groundwater manage-

Water access gains momentum in communities equipped with effective local water governance institutions such as India’s Pani Samitis

ment, and communication campaigns that keep water top of the mind, such as Jal Shakti Abhiyan: Catch the Rain. Second, enabling public (and private) financing for the capital and recurring costs of water governance. Third, developing partnerships between national, state, and local governments; community-based organisations, and national and international knowledge organisations, including multilateral development banks like the World Bank. Fourth, ensuring people’s participation in local water decision-making and management, such as communities resolving to make their villages open-defecation free or preparing village-level water security plans. The “4 Ps” are worth emulating in any other context or geography.

Manage the water resource and the service together: Taps and canals will fail if water does not flow. Addressing both water resources development and service sustainability simultaneously and at scale is paramount. Many cities in Africa are growing at a rapid rate, and industrial and irrigation demand will follow, so planning resources and services together now is cheaper than retrofitting later. As India’s experience in recent decades shows, getting ahead of the coming surge in water demand with linked water resources and services plans would help countries gain from these economic shifts with lower risk for water insecurity. A key part of getting ahead of this surge is being forward-thinking on water reuse, especially for non-potable uses, including planned data centres and semiconductor fabrication units. In India alone, the annual market revenue from the sale of treated used water is projected to reach around Rs 73,000 crore by 2047, at current prices.

Root water action in community ownership: Water access gains mo-

mentum in communities equipped with effective local water governance institutions such as India’s Pani Samitis, infrastructure that consistently delivers a high-quality service, and a balance of internal resources and external support. This has been demonstrated through numerous water conservation, harvesting, and recharge programmes. There is a governance linkage across scales to achieve this. As demonstrated in Gujarat during 2001-2014, the Chintan Shivirs helped prioritise water governance among key stakeholders and formulate actionable solutions to design water-related policies aligned with community expectations. A similar approach was replicated at the national level. The recent Departmental Summit on Water organised by the Ministry of Jal Shakti and addressed by the PM in September 2026 is an example.

Going big and scaling up: The world is off track on SDG 6 to ensure safe drinking water and sanitation for all, and to sustainably manage water resources, used water, and ecosystems by 2030. Estimates suggest an additional \$500 billion in annual investment is required. To meet the scale of water governance reforms, infrastructure installation, data collection, and maintenance required for SDG 6, governments and their leaders cannot afford to slow down. Implementation of JJM across the country demonstrates that India can both think big and implement big. The global community can learn from political leadership at the highest level in India about the will, the financing and the institutions to do it at scale.

Iyer is a former secretary to the Government of India at the Ministry of Jal Shakti; Bassi is a fellow with the Council on Energy, Environment and Water; Smith is an assistant professor at George Mason University. Views are personal

In Germany, Indian migrant is caught between politics, policy



SHAIREE MALHOTRA

ELECTIONS IN the East German states of Saxony-Anhalt and Mecklenburg-Western Pomerania gave the far-right Alternative für Deutschland (AfD) two striking victories, marking the German far right’s first landslide since 1945. Its vote share increased in Berlin. Chancellor Friedrich Merz’s Christian Democrats suffered a historic defeat in all three elections. From failing to enter the Bundestag in 2013, the anti-immigrant AfD rose to second place in the 2025 federal elections, becoming the largest opposition party. It has exploited grievances over economic stagnation, pairing the discontent with demands for severe restrictions on immigration. This has consequences for Germany, the EU, and India.

In 2022, India and Germany signed a Migration and Mobility Partnership Agreement (MMPA). As Germany grapples with an ageing population, mass retirements and declining birth rates, the MMPA provides up to 3,000 annual job seeker visas for qualified Indian professionals. But while Germany invests in creating pathways to address labour shortages, its electoral politics portrays migration as a threat. With Indian nationals tripling from 86,000 in 2015 to 2,80,000 in 2025, the German Institute for International and Security Affairs describes India as “the most important country of origin for labour and education migration”. Around 1,38,000 Indians work in skilled occupations including STEM fields, IT, healthcare — sectors central to the economy, but struggling with the largest worker deficits. A Bertelsmann Foundation study estimates that Germany would need 4,00,000 fresh immigrants annually to address worker shortages, likely to number 1.3 million by 2030. The AfD’s proposed incentives to bring back Germans living abroad and “baby bonuses” can hardly bridge such gaps. But with the far-right boom, skilled Indians considering a future overseas may also rethink Germany’s allure.

As migration rules are determined at the federal level, the far-right’s rise may not lead to a direct abrogation of migration laws or agreements. Yet there is already evidence of a hardening political atmosphere. In 2025, Merz’s CDU sought to restrict migration through a proposed law supported by the AfD. Thus, even as they try to keep the AfD out with the “firewall”, its influence is changing how mainstream parties approach migration. States control aspects of public services, policing, and education, where far-right ideology may create an uneasy climate. Hate crimes doubled from 2019 to 2023. The AfD’s rhetoric differentiates between irregular migration that burdens welfare systems and skilled legal migration that contributes to society. Yet rather than migration status, traits such as skin colour shape day-to-day encounters and prejudices. While the election results may not erode Germany’s broader appeal, and a migration architecture that remains comparatively open as anglophone destinations tighten policies, perceptions are a two-way street. Hard-right rhetoric may convince skilled Indians to see Germany as a corridor to onward migration.

As Indo-German relations expand, the mobility of skilled professionals acts as a bridge, also linking both countries’ research and innovation ecosystems, particularly in domains like AI. How policymakers reconcile political and economic realities will determine Germany’s fate as Europe’s industrial powerhouse and its attractiveness as a migratory destination.

Hard-right rhetoric may convince skilled Indians to see Germany as a corridor to onward migration

The writer is a deputy director with ORF



ECI must not force voters to lie. Solution may lie in a Form 6X



S Y QURAISHI

THE ELECTION Commission's latest instructions mark a U-turn in its approach to the Special Intensive Revision (SIR). After an exercise in which about 13 crore names disappeared from draft electoral rolls, the ECI has directed its machinery to identify and re-enrol arbitrarily deleted eligible voters. The change is welcome — even after causing countrywide chaos. But its significance should not be concealed behind administrative language.

In instructions issued on September 29 and reinforced at its October 1 meeting with Chief Electoral Officers, the ECI has ordered a special enrolment drive in 20 states and Union territories where SIR has been completed. Officials must compare pre-SIR and post-SIR rolls, identify missing voters, visit their homes and facilitate their enrolment. Political parties may assist. These instructions address two distinct problems. Both deserve attention.

First, young voters. For years, the ECI took pride in encouraging every Indian youngster who turned 18 on every January 1 to register immediately. The Union cabinet's 2011 decision to make January 25 National Voters' Day reflects this approach. In 2022, another important reform was introduced. Instead of a single qualifying date of January 1, it provided four: January 1, April 1, July 1 and October 1. Seventeen-year-olds could even apply in advance. The message was unmistakable: Nobody should unnecessarily wait to exercise the franchise after becoming eligible.

What happened to that commitment in 2024?

The ECI must explain how many young people becoming eligible from 2024 onwards remained unenrolled and why. It cannot now quietly announce a special drive for young voters and expect everyone to forget these questions. Generation Z is entitled to an explanation. The Commission should publish quarterly figures for applications, enrolments, rejections and pendency, identify those affected by its additional requirements, and account for any eligible young citizens who consequently missed elections. Those responsible for unlawful or unjustified administrative obstructions must be held accountable. Announcing a corrective drive is no substitute for explaining why it became necessary.

Two, the restoration of deleted voters. Here, the contradiction is even more extraordinary. The Commission has instructed officials to identify people who appeared on the pre-SIR rolls but disappeared from the revised rolls and bring them back on the rolls straightaway. A dramatic surrender indeed. Yet it proposes to bring them back through Form 6. The heading of Form 6 explicitly states: "Application Form for New Voters". Its declaration requires the applicant to state: "I am applying for inclusion in Electoral Roll for the first time." How can somebody who has been voting for 20 or 30 years honestly sign such a declaration? There is an additional irony. The same form warns that making a false declaration is punishable under Section 31 of the Representation of the People Act, 1950, with imprisonment extending to one year, a fine, or both. An elector whose name has disappeared is effectively being told to declare that he is applying for registration for the first time.

We need to examine the experience of those previously registered voters who reportedly protested against this procedure but were nevertheless forced to submit Form 6. How many complied because they were told that they had no other way of recovering their vote? Why should citizens be placed in a position where recovering their electoral registration requires them to sign a false — and hence illegal — declaration? There is a potentially serious criminal dimension for election officials, too. Under Sections 45 and 49 of the Bharatiya Nyaya Sanhita, intentional instigation or assistance in committing an offence can constitute abetment. An abettor can face the same punishment as prescribed for the offence.

But the larger question is institutional. The Commission is now instructing officials to identify previously registered voters and bring them back through a statutory form designed for first-time applicants. How can it reconcile these two instructions?

The solution is straightforward. Introduce an appropriate restoration procedure. Ask for the previous EPIC number and electoral-roll particulars. Verify whether the citizen remains eligible, has shifted residence, is registered elsewhere or has become disqualified. Where necessary, amend the statutory forms through the prescribed legal procedure. I would suggest introducing a new form, say 6X.

We must save citizens from expensive and cumbersome litigation when the electoral administration possesses the records needed to examine their claims. A first-time voter needs registration, using Form 6. A wrongly deleted voter needs restoration, using Form 6X, which can be created in a few hours by the Law Ministry amending the Registration of Electors Rules, 1960.

The Commission has finally recognised the practical necessity of identifying both categories. It must now provide legally appropriate procedures for dealing with them, publish the results and explain the administrative failures that made this corrective exercise necessary.

Quraishi is former chief election commissioner of India and the author of An Undocumented Wonder: The Making of the Great Indian Election



• NOBEL MEDICINE PRIZE 2026

How scientists used light to control brain cells



ANONNA DUTT

THE NOBEL Prize in Physiology and Medicine for 2026 was jointly awarded to Karl Deisseroth, Peter Hegemann and Georg Nagel for their discovery of an alga protein that reacts to light and its use as a switch to study the functions of nerve cells.

Their explorations led to the creation of a new field of study called optogenetics, which may finally help scientists understand how the brain forms memories, feelings and behaviours.

“We were able to precisely pace the heart and look at the effects that different heart rates have on brain states... Communication across the body, from the body to the brain, but with the precision of a gain of function in a peripheral organ allowing us to see the effects on brain and behavioural state... this ability to execute a precision intervention in one organ and read out the effects in complex behaviours — this is something that people have wanted for a long time to be able to do,” said Deisseroth.

In simple terms, they found a way to control cells with light. Imagine that the brain is a vast electrical network containing billions of tiny cells called neurons. These neurons communicate by sending electrical signals, allowing us to move, see, remember, feel pain and experience emotions. Deisseroth, Hegemann and Nagel helped scientists develop a remarkable way of controlling these electrical signals: using light.

Their research led to the discovery and development of light-sensitive proteins, called opsins, that can be placed in specific cells. When light is directed at those cells, the proteins act like tiny switches, turning the cells’ activity on or off. This is known as optogenetics — essentially, using light to control genetically modified cells.

• ‘For their discoveries concerning light-gated ion channels and optogenetics’



“Optogenetics... fundamentally altered our understanding of the brain,” the press release said. It credited the three for ushering in a new era in neuroscience.



KARL DEISSEROTH, 54
The Howard Hughes Medical Institute and Stanford University



PETER HEGEMANN, 71
Humboldt University of Berlin, Germany



GEORG NAGEL, 73
University of Würzburg, Germany

ON TUESDAY: NOBEL PRIZE IN PHYSICS

What is optogenetics?

It is a field of research that uses light to manipulate the activity of neurons or other types of cells and study the resulting effects. This is done by expressing the light-sensitive protein in the targeted cells. Within the brain, it has contributed towards identifying neural circuits responsible for sensing pain, social behaviours, thirst, food consumption, reward and attention or the understanding of how memories are created.

Interestingly, the field rests on a theory proposed by Francis Crick, the molecular biologist who was behind the discovery of the double helix structure of DNA, and was awarded the Nobel prize for it.

He envisioned activating individual nerve cells in the brain to investigate the mechanisms that underlie human consciousness. With nerve signals being extremely rapid, he realised it would only be possible if scientists were somehow able to manipulate the nerve cells with light. He himself admitted that the idea sounded far-fetched.

But it was made possible by the work of Hegemann and Nagel on the alga *Chlamydomonas*. These are famous for their ability to quickly swim towards a light source. Hegemann found that these reacted extremely quickly, within half a millisecond after the light reached a tiny orange dot (called the eyespot) that the alga used to de-

Why the field matters

‘Optogenetics has given us an extremely powerful way to switch on and off the neurons and see what happens.’

It has allowed us to manipulate nerve cells and study its effects with an unprecedented level of precision,’ said Vidita Vaidya, senior professor, Tata Institute of Fundamental Research.

tect light. For reference, it takes 10 milliseconds for the human eye to react to light. Hegemann wondered, how could the response to light be more than 20 times faster in *Chlamydomonas*?

He hypothesised that a single protein complex both captured light and acted on it in the alga as opposed to the multi-step process in the human eye. Yet, finding this protein was a challenge because when the proteins in the algal eyespot were removed from their natural setting, they became unstable and easily damaged. This is when he discovered that Japanese researchers had mapped the DNA of *Chlamydomonas*, among which were the codes for two genes that shared similarities with light-capturing proteins.

Enter Nagel. He used egg cells of frogs to express the two proteins and confirm Hegemann’s hypothesis. The alga detected and reacted to light using the protein channelrhodopsin-2 (ChR-2). They then introduced the cells in different types of cells and found that they all became light sensitive.

Deisseroth found that ChR-2 could control the activity of specific nerve cells in the manner proposed by Francis Crick. He used it to control rat nerve cells in a petri dish and later in the rats. With Deisseroth’s lab at the forefront, researchers soon found more proteins that can turn nerve cells on and off, and which are activated by different wavelengths of light.

The work laid the foundation for optogenetics, which has expanded knowledge of how the brain functions, and could help develop new therapies

How does it help to study the brain?

“Imagine the brain to be a building with lots and lots of rooms — now there was no way for us to know what happens if the light is switched on in just one room. Optogenetics has given us an extremely powerful way to switch on and off the neurons and see what happens. It has allowed us to manipulate nerve cells and study its effects with an unprecedented level of precision. It has completely changed the scale at which discoveries are happening in neurosciences,” said Vidita Vaidya, senior professor at the Tata Institute of Fundamental Research.

Optogenetics is still largely used in laboratories to see which set of neurons regulates what type of behaviour in animals, helping scientists look into the black box, Vaidya says. Dr Sanjeev Kumar Mahto, professor at IIT BHU, said it has allowed scientists to see the functions of the brain and enhance the understanding of what causes certain conditions.

Deisseroth’s research group introduced the gene for ChR-2 in 2006 and successfully used light to activate neurons and control the movements of mouse whiskers. The same year, he used the technique to wake sleeping mice by manipulating a recently discovered type of nerve cell that was suspected to control wakefulness. His team also studied the brains of mice as they experienced fear, and noted which nerve cells appeared to form memory. When they later reactivated these nerve cells, the mice showed signs of fear, despite not being in danger at the time.

What kind of therapies are being developed based on this field?

There are ongoing clinical trials on restoring vision in people who have become blind due to *retinitis pigmentosa*, a disease that destroys the eye’s rods and cones. Using special glasses emitting light, the person was able to discern and grasp objects on a table. There are also hopes that optogenetics could improve cochlear implants. Currently, these implants stimulate the auditory nerve using electricity.

• LEGAL

House privileges vs free speech: The question before Supreme Court

Amaal Sheikh
New Delhi, October 5

THE SUPREME Court on Tuesday will begin hearing a long-pending reference on the scope of legislative privileges, special powers and immunities enjoyed by Parliament and state legislatures to protect their functioning, and whether they can be invoked against citizens, journalists and others for breaching the privileges of the House.

A seven-judge Constitutional Bench comprising the Chief Justice of India Surya Kant will hear the matter.

At the heart of the case is whether these privileges, under Articles 105 and 194 of the Constitution, can override fundamental rights such as freedom of speech and expression under Article 19.

Legal framework

Article 194(3) grants legislatures certain privileges and immunities. Article 19(1)(a) guarantees freedom of speech and expression, including press freedom. The case turns on the interplay between these two rights and whether legislative privilege can override the right to free speech. The petitioners contend that such a privilege exists to protect the House’s functioning, not to shield it from scrutiny.

Articles 14 and 21 provide for the right to equality and the right to life. The petitioners argue that when legislatures order arrests or imprisonment for alleged breaches of privilege, they affect personal liberty. According to them, any action affecting liberty must satisfy constitutional guarantees of fairness, due process and protection against arbitrariness.

History of the challenge

In 2003, *The Hindu* reported on sharp exchanges between Tamil Nadu Chief Minister J Jayalalithaa and the Opposition in the state Assembly. Speaker K Kalimuthu objected to those reports and referred them to a Privileges Committee, saying the descriptions were “contrary to truth” and “had affected the privileges of the legislature”.

The controversy escalated after *The Hindu* published an editorial criticising the “crude use of state power against various sections including political opponents and the independent media”. It stated that legislative privilege “exists to protect its free and independent functioning and not to protect the reputation of the government or of individual members”. A Tamil translation published by *Murasoli* was also referred to the Committee.

The Assembly ultimately held five journalists of *The Hindu* and *Murasoli* editor S

Past verdicts

● In 1954, the SC ordered the release of the editor of Blitz, who had been detained under the UP Assembly Speaker’s warrant, after finding that he had not been produced before the magistrate within 24 hours.

● In *Sita Soren* (2024), it held that bribery is not protected by the Constitution. It overruled a 1998 ruling wherein the court had granted immunity to MPs accused of taking bribes to vote.

Selvam guilty of gross contempt and breach of privilege, sentencing them to 15 days imprisonment and issuing arrest warrants. The journalists approached the SC, which immediately intervened and stayed the warrants but referred the matter to a Constitution Bench.

Supreme Court precedents

The reference came about because of two conflicting Constitution Bench decisions. In 1959, the SC, in a 4:1 majority, in *Pandit M.S.M. Sharma v. Sri Krishna Sinha* (also known as the Searchlight case) held that Assembly privileges under Article 194(3) included the power to prohibit publication. It said that because Article 19(1)(a) is a general provision and Article 194(3) is a special provision, free speech must yield to legislative privilege.

But in the Special Reference No. 1 of 1964, the Uttar Pradesh Assembly jailed a citizen, Keshav Singh, distributing pamphlets accusing an MLA of corruption. When the Allahabad High Court granted him interim bail, the Assembly ordered that the two judges who passed the order, the lawyer and Keshav Singh himself be brought before the House in custody. While a Full Bench of the HC stayed those arrest warrants, the President referred the dispute to the SC.

The SC bench held that Constitutional

courts could examine the legality of detention ordered in privilege proceedings, and that legislatures could not proceed against judges and lawyers for performing their duties. The court said that the Searchlight case did not lay down a universal rule that fundamental rights in Part III of the Constitution (Articles 12-35) always yield to legislative privileges.

What petitioners are arguing

The petitioners argue that the TN Assembly’s action violated free speech, personal liberty, and basic principles of natural justice. They contend that “honest and courageous reporting by the press is the bedrock of parliamentary democracy” and that journalists cannot perform their role “in an atmosphere of fear and terror”.

They argue that legislative privileges are subject to Article 21 and that permitting a legislature to deprive a person of liberty “by mere passing of a resolution” would be “an anathema to the Constitution”. The petitioners also argue that privileges exist to protect the functioning of the House, not the government, stating that there is “no concept of any parliamentary privilege being applicable to a Chief Minister... or to a ‘government’” and that privileges are “not intended to protect the fame and reputation of the ruling party”.